

STUDY GUIDE AIPPM



Agenda 1 : Evaluating Reforms to
Military Recruitment, Training, and
Career Integration

Agenda 2 : Discussing Reforms in the
Indian Criminal Justice System to
Uphold Rule of Law





Letter from R&D

Dear Delegates,

The Department of Research & Development of MUNSociety MPSTME welcomes you to the 11th edition of Mumbai MUN! Our department upholds a proud tradition of facilitating meaningful discourse on national and international matters, encompassing both historical events and current issues.

We are primarily tasked with formulating agendas and preparing comprehensive study guides. We have created detailed and engaging guides aimed at providing valuable resources for all delegates.

This year's theme, "Redefine the Norm," challenges us to think beyond conventional solutions and embrace innovative approaches to global challenges. In a rapidly evolving world, traditional methods often fall short of addressing contemporary issues. We believe that transformative change requires the courage to question established practices and the creativity to envision alternative pathways.

With this theme in mind, we have thoroughly picked agendas and committees that demand fresh perspectives, challenge conventional thought, and encourage innovative approaches to problem-solving. In this study guide, you will find well-researched background information to help you prepare for your committee sessions.

We, as facilitators, aim to provide you with the intellectual arsenal to combat any challenges that you might face and make the most of your Mumbai MUN experience.

We look forward to your active participation and contributions during Mumbai MUN and are confident that, together, we can make this conference a memorable and enriching experience for all.

Best wishes,

Department of Research & Development,
MUNSociety MPSTME.

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Agenda 1: Evaluating Reforms to Military Recruitment, Training, and Career Integration

INTRODUCTION

The Indian Military is key in ensuring peace and security in India, protecting its political interests and more importantly its citizens. The development and maintenance of a successful military involves 3 important steps. The first step involves the recruitment of appropriate and qualified candidates. The recruitment process must be rigorous and should only deem those candidates eligible to be part of the military who are capable and desire to serve the country. The second step must ensure that the selected candidates are trained with the best possible resources and mentorship. The training program must maximise the physical and mental development of the soldier, while also nurturing their moral qualities, leadership capabilities and communication skills. The third step is to organise and implement the military and its structure to ensure that it is fulfilling its duties.

The Indian Military Academy and National Defence Academy are two of the most distinguished institutions for the same. Lastly, these troops need to attain the right opportunities for career integration within the military, even while they are still serving. These opportunities could be like providing troops with the ability to pursue simultaneous education or financial benefits. However, the recruitment and training model has flaws, so a revaluation and discussion on reforms for the security of the citizens and the welfare of the Military is vital.

The Agnipath Scheme has caused significant upheaval in both the military and political sector making it more important than ever to discuss the training and recruitment within the Indian Army. Building effective training programs is key for ensuring the effectiveness of our military in a time of global instability.

BACKGROUND

Pre-Independence Military Recruitment Policies

The 1857 revolution was a big hit to the British Raj. The power shifted from the East India Company to the British Crown and with it came harsh reforms within the British Indian Army. It was significantly reorganised to secure control and prevent further uprisings. Previously the British Indian Army followed the martial race theory extremely heavily where people of a particular race would be heavily recruited into the army. However, after the uprising, a diverse set of ethnic and religious groups were introduced to prevent an organised coup.¹

Second Afghan War (1878-1880)

The British Indian Army was heavily partaking in the Second Afghan War. Indian troops under British Command fought major battles like the Siege of Kandahar (1879) and the Battle of Maiwand (1880).²

¹Encyclopædia Britannica, inc. (2024a, September 3). *British Raj*. Encyclopædia Britannica. <https://www.britannica.com/event/British-raj>

²Encyclopædia Britannica, inc. (2024, October 28). Encyclopædia Britannica. <https://www.britannica.com/place/India/Anti-British-activity>

World War I (1914-1918)

When the war started recruitment was completely voluntary for the military. This included activities such as active soldiers, builders and even medics. As the war progressed and became brutal, the British started pressuring the Indian colony and asked for minimum quotas from each village for both labour and the army. Yet it is still termed as one of the biggest volunteer forces of WWI. The normal annual recruitment for the Indian army was 15,000 men. During the war over 800,000 men volunteered for the army and more than 400,000 volunteered for non-combatant roles. In total, almost 1.3 million men had volunteered for service by 1918. In total, at least 74,187 Indian soldiers died in World War I.³ Child soldiers, some as young as 10 years old, were enlisted to fight in the war.

World War II (1939-1945)

By the end of World War II, the British Indian Army had grown to over 2.5 million troops, becoming the largest volunteer army in history. Indian forces actively participated in major operations across the North African Campaign, the Italian Campaign, and the Burma Campaign. In 1941, they played a pivotal role in defending British colonies in the Middle East, with notable victories such as the Battle of El Alamein in 1942. Indian troops were crucial in countering Japanese advances in Southeast Asia, particularly during the decisive Battles of Kohima and Imphal in 1944, which marked a significant turning point in the Burma Campaign.⁴

The Indian National Army (INA), led by Subhas Chandra Bose, collaborated with the Axis powers to dismantle British colonial rule during World War II. The INA's actions significantly mobilized nationalist sentiments among the Indian populace.

Royal Indian Navy Mutiny (1946)

The February 1946 Royal Indian Navy Mutiny marked a pivotal moment in India's independence movement. It began on February 18, 1946, when ratings aboard HMIS Talwar in Bombay (now Mumbai) launched a hunger strike to protest low wages, inadequate working conditions, racial discrimination, and food shortages. Within days, the movement spread to over 20,000 ratings across 78 ships and shore installations in Karachi and Calcutta.⁵

The insurgents replaced British flags with symbols representing Indian nationalist groups, such as the Congress and the Muslim League, receiving widespread public support, especially in Bombay, where workers and students rallied. Despite strong public backing, Indian leaders from both Congress and the Muslim League urged the sailors to prevent further violence. By 23rd February, the mutiny had largely subsided, yet clashes continued, resulting in over 300 civilian deaths and more than 1,500 injuries due to British reprisals. Although suppressed, the mutiny highlighted rising discontent within the armed forces, accelerating British plans for withdrawal. Following partition, armed forces

³Cwgc. (n.d.). *The Commonwealth War Graves Commission*. CWGC. <https://www.cwgc.org/>

⁴Marston, D. (n.d.). *The performance of the Indian Army in the Second World War (Chapter 2) - The Indian Army and the end of the raj*. Cambridge Core. <https://www.cambridge.org/core/books/abs/indian-army-and-the-end-of-the-raj/performance-of-the-indian-army-in-the-second-world-war/98837CF72C505BB15F15A87B2C02AC69>

⁵Mahotsav, A. (n.d.). *The Naval Mutiny of 1946*. Azadi Ka Amrit Mahotsav, Ministry of Culture, Government of India. <https://cmsadmin.amritmahotsav.nic.in/district-repository-detail.htm?25150>

were divided into the Indian and Pakistani militaries.

RECRUITMENT AND TRAINING MODELS

Training Academies

The National Defence Academy (NDA)

The National Defence Academy (NDA) is a joint training institution for the Indian Armed Forces, which offers unmarried men and women the chance to train for a career in the Army, Navy, or Air Force. An eligible candidate must be an Indian citizen, a subject of Nepal, a Tibetan refugee who arrived in India before January 1, 1962, to settle there permanently, or an individual of Indian origin from a specific nation to settle there permanently. Further, the candidates between the age group of 16.5 and 19.5 are eligible to be a part of the NDA. For the Indian Army, the candidate must have a 12th Pass. On the other hand to be eligible for the Indian Air Force or Navy, the candidates must have completed 12th with Physics, Chemistry and Mathematics. Further, the candidates must be physically and mentally fit as per the prescribed guidelines.⁶

The eligible candidates have to take an entrance exam conducted by the Union Public Service Commission (UPSC). The training time at NDA lasts six terms or three years. There are two terms each year, spring and autumn. The cadets at the Army training are taught fundamental military skills and leadership qualities. At the Air Force, the cadets are given training in the Super Dimona which is a multi-utility aircraft of Austrian origin and is used to initiate the VIth term Air Force cadets to powered flight. Further, AFTT training

focuses on Flying Training, Ground Training and Air Warrior Training. As far as the Navy is concerned, the V and VI-term Naval Cadets receive Specialist Service Subject Training from the Naval Training Team (NTT).

The Indian Military Academy (IMA)

Founded in 1932, The Indian Military Academy (IMA), Dehradun, is one of the most elite Institutions that train Gentlemen Cadets (GCs) for commission into the Indian Army. The IMA comprises four training battalions: Cariappa, Manekshaw, Bhagat, and Thimayya. The head instructor is a major general, the deputy commandant is a lieutenant general, and the commandant is a lieutenant general. It prepares gentlemen cadets for commission into the Indian army. The Academy's primary objective is to maximise the development of The physical, mental, and moral qualities required for military leadership.⁷ Cadets are assigned to different units and formations throughout the nation after graduating and receiving their commissions as officers in the Indian Army. Admission into the Indian Military Academy can be done in 4 different ways - Graduation from NDA, Technical Graduate Course (TGC), University Entry Scheme or Combined Defence Services Examination (CDSE).

Indian Airforce Training

Since its establishment in 1971, the Air Force Academy (AFA) at Dundigal has evolved into a premier institution for training Indian Air Force officers. Candidates selected for Air Force service commence a rigorous three-year program at the National Defence Academy (NDA) in Khadakwasla, followed by specialised training at Air Force institutions, culminating in

⁶ National Defence Academy. (n.d.). <https://nda.nic.in/>

⁷ Indian Military Academy credo. (n.d.-l). https://joinindianarmy.nic.in/writereaddata/Portal/Images/pdf/JI_IMA_148_DEHRADUN.pdf

commissioning as Permanent Commission Officers.

Programs available at AFA include those for flying, ground duty technical and non-technical branches and training of handpicked army and navy officers. The courses at AFA are focused on building technical skills, leadership, and service conduct by incorporating case studies, job training, presentations, field exercises, weapon training, and cultural activities into a comprehensive curriculum. AFA also provides branch-specific training for Ground Duty Officers in Administration, Logistics, Accounts, Education, and Meteorology. Additionally, Joint Services Training promotes inter-branch collaboration as well.⁸

Further technical and administrative training is received from other learned institutions. The Air Force Administrative College, Coimbatore, is one of the oldest training centres and delivers specialised programs for in-service officers from the Air Force, Navy, Army, and allied nations. Along with this, the technical college focuses on technical training by balancing theoretical knowledge through electronic and propulsion labs, providing hands-on experience for students.

For aspiring pilots, Flying Training Establishments (FTE) across India guide trainees through three levels of flying complexity. Graduates of the program earn their Wings at a Combined Graduation Parade held at AFA, marking their entry into operational flying roles within the squadrons. By coordinated rigorous training, AFA and its affiliate institutions equip officers to assume the multiple responsibilities of Air Force service with technical, operational, and leadership excellence in mind.

Indian Navy Training

The Indian Navy's training process is designed to develop disciplined, skilled personnel ready for complex maritime operations. Training begins at the Indian Naval Academy (INA) in Ezhimala, Kerala, where officer cadets undergo rigorous academic and physical training, combined with drills and seamanship. After this foundational training, officers move on to branch-specific courses. Technical cadets may train further at the Naval College of Engineering in Lonavala or the Electrical Training Establishment in Jamnagar. Officers also gain practical experience through Fleet Training on active ships, submarines, and aircraft.⁹

For sailors, initial training takes place at INS Chilka in Odisha. Post-basic training, sailors receive specialised instruction based on their roles, in fields such as Electrical, Aviation, or Submarine Arms, to equip them for technical responsibilities within the Navy. Agniveer candidates for the navy are also trained here.

Specialised training extends to elite roles as well. Marine Commandos (MARCOS), for instance, undergo intense physical and combat training for specialised missions, while naval aviators train at the Air Force Academy and facilities like INS Rajali for aircraft and helicopter operations. This comprehensive training structure ensures that Navy officers and sailors are well-prepared to safeguard India's maritime interests.

Alternate Training Models

Indian Army Technical Entry Scheme (TES)

TES is an entry route where there is an option to be a Permanent Commission officer and get commissioned while individuals pursue their

⁸IAF Training. IAF-training. (n.d.). <https://afcat.cdac.in/AFCAT/training>

⁹Training centers - join Indian Navy | Government of India. (n.d.-p). <https://www.joinindiannavy.gov.in/en/about-us/training-centers.html>

engineering degrees. There are 90 provisional intakes for the TES-53 course commencing in July 2025. This also allows candidates passing JEE Mains and pre-engineering to apply.

The training is 4 years long and divided into two phases. On successful completion of training, candidates are bestowed with an engineering degree and commissioned as Lieutenants in the Indian Army with Permanent Commission, carrying a CTC of around 17-18 Lakhs per annum. During the training itself, cadets draw a stipend of ₹56,100 per month.

Additionally, the process includes the submission of applications, shortlisting based on the cut-off criteria, a five-day SSB interview, medical examination, merit lists, and issuance of joining letters. The majority of the candidates are commissioned to the Corps of Engineers, Corps of Signals, and Corps of Electronics and Mechanical Engineers. It gives the provision of studying military and engineering together, producing soldiers capable in a variety of fields.¹⁰

Technical Graduate Course

Technical Graduate Course (TGC) is an officer training programme designed for engineering and technical graduates who have completed a bachelor's degree in engineering or technology and want to join the Indian Army as commissioned officers. Individuals aged 20 to 27 years are eligible for the TGC. Further, the candidate must be an Indian citizen, a subject of Nepal, or a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka, and a few East African countries to settle permanently in India. Individuals must be enrolled in an engineering degree program or be in their final year of degree, to be eligible. Selected candidates will be called up for training at India Military Academy. The duration of training is about 12 months.

The TGC have 3 types of commissions -
1) Grant of Commission - Chosen candidates will be granted a Short Service Commission on probation in the rank of Lieutenant. During the training period, they will also be eligible for full pay and benefits that are available to Lieutenants. After completing the training successfully, pay and benefits will be given.

2) Permanent Commission - Cadets will get a Permanent Commission in the Army at the rank of Lieutenant upon completing their training.

3) Ante Date Seniority - A year of antedate seniority from the date of commission in the rank of Lieutenant shall be awarded to engineering graduates of TGC Entry.

The government bears the full cost of the candidate's training. If the cadet withdraws or is withdrawn from the Training Academy for reasons other than medical ones or those that are not within his control, he will be liable for returning the training fee. Candidates who withdraw for personal reasons will reimburse the State for the training expenses. The candidates are restricted from marrying or living with parents/guardians during the period of training.

University Entry Scheme

The University Entry Scheme (UES) allows final-year engineering students to join the Indian Army, Navy, or Air Force. Applicants must be in an AICTE-approved university, with a minimum of 60% aggregate up to the pre-final year. Eligible candidates are aged 18–24 and share the nationality criteria with NDA applicants.

The training duration varies from one year for the Army, 22 weeks for the Navy, 74 weeks for Air Force Flying/Technical branches, and 52 weeks for the Ground Duty Non-Technical branch. Army selectees receive Short Service Commission as

¹⁰Join Indian Army. (n.d.-n).

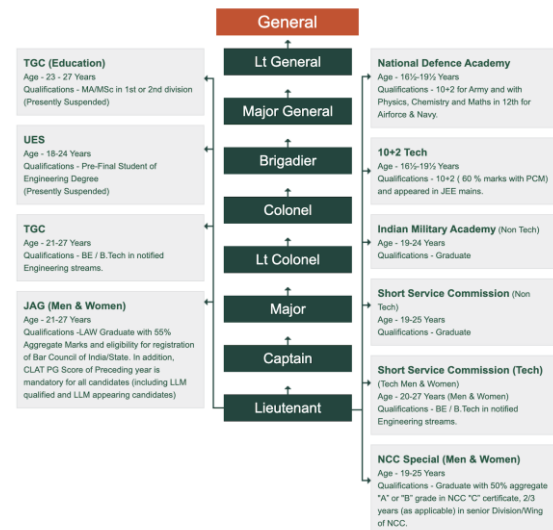
https://joinindianarmy.nic.in/writereaddata/Portal/NotificationPDF/NOTIFICATION_FOR_TES-53_COURSE.pdf

probationary Lieutenants, with promotion to Lt. Colonel based on service requirements.

Short Service Commission

The Short Service Commission (SSC) offers a voluntary career option for individuals to serve as officers in the Indian Armed Forces on a short-term basis, with training conducted at PCTA. The age limit for SSC (Tech) 64 for men and SSCW (Tech) 35 for women is 20 to 27 years as of April 1, 2025, while widows of fallen Indian military personnel can apply for SSCW (Tech) and SSCW (Non-Tech) (Non-UPSC) positions up to 35 years old. Candidates must hold or be in the final year of an Engineering Degree to qualify. The training period lasts 49 weeks, culminating in a 'Post Graduate Diploma in Defence Management and Strategic Studies' for successful graduates of the Officers Training Academy's Pre-Cx`ommission program.

Gentlemen and Lady Cadets are insured for up to Rs. 1 crore upon receiving their stipend. All PCTA training expenses are covered by the government, as is the case with UES.



Source: Indian Army

Direct Entry Schemes

All entries require standard education qualifications of 10+2, except the (JCO) Religious Teacher, and additionally require further qualifications that are specific to their roles.

Catering JCO

The Catering Junior Commissioned Officer (JCO) oversees the food preparation and distribution while ensuring the provision of balanced meals, even under field conditions or in remote locations where food resources may be limited.¹¹

Havildar

The rank of Havildar in the Indian Army categorised as a Non-Commissioned Officer (NCO), commands platoons of 10 to 30 soldiers. Positioned as an intermediary between enlisted personnel and commissioned officers, Havildars hold authority over discipline, training, and operational readiness within their units. They also manage the daily execution of orders from commanding officers and play a vital role in tactical movements during military campaigns. While often deployed in field duties, Havildars

¹¹Eligibility criteria for recruitment process : JCO / or enrolment | join Indian Army. (n.d.-a). <https://164.100.158.23/eligibility-criteria-for-recruitment-process.htm>

may also take on secondary roles in other departments where they oversee operations.

Surveyor

A Surveyor in the Indian Army is a specialised professional responsible for conducting ground surveys and creating maps for military operations. Surveyors operate across diverse environments and their work is essential in both peacetime and wartime through providing accurate maps and geospatial data.¹²

Sepoy (Pharma)

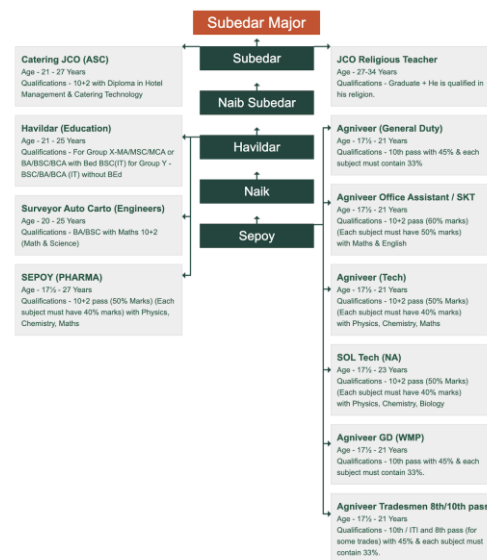
A Sepoy (Pharma) in the Indian Army serves a role akin to a pharmacist, working closely within medical units to provide and manage pharmaceutical services. They are responsible for dispensing medications, maintaining inventory, and ensuring secure storage and distribution of medical equipment. Sepoy (Pharma) educates soldiers on medication use as well.¹³

JCO Religious Teacher

A Junior Commissioned Officer (JCO) Religious Teacher in the Indian Army serves as a spiritual guide and moral support for soldiers. Representing diverse religions, they conduct religious services and provide counsel during times of stress. Additionally, they educate soldiers on ethics, discipline, and moral conduct, reinforcing the Army's values.¹⁴

SOL Tech

A Soldier Technician (SOL Tech) in the Indian Army is tasked with maintaining, repairing, and operating technical equipment used by soldiers in the field. In warfare, they conduct routine maintenance and prepare equipment for future deployments.



Source: Indian Army

AGNIPATH SCHEME

Objectives

The Agnipath Scheme focuses on various objectives aimed at enhancing the Indian Armed Forces. The average age of the Indian Army is currently 32 years. With the involvement of the youth in the Army, the Agnipath Scheme intends to lower this age limit to 26. The scheme attracts youth who are keen on serving the country and

¹²Indian Army. (n.d.-m).

https://www.joinindianarmy.nic.in/writereaddata/Portal/News/54_1_SAC_Notification_English.pdf

¹³Eligibility criteria : JCO / or Enrollment | Join Indian Army. (n.d.-b). <https://164.100.158.23/eligibility-criteria.htm>

¹⁴Army religious teacher Dharm Guru Recruitment 2022. (n.d.-d).

https://joinindianarmy.nic.in/writereaddata/Portal/BRAVO_NotificationPDF/Notification_For_Religious_Teacher-RRT_91_and_92.pdf

allows them to get recruited into the Indian Armed Forces for a short duration. The Agniveers can efficiently utilise the country's technological institutions, to successfully exploit, apply, and employ modern technologies with better technical entrance standards.¹⁵ Moreover, the scheme aspires to impart skills and attributes, which include dynamism, discipline, a strong work ethic, and motivation, which enable the youth to excel in their respective roles at the Indian Armed Forces while also enhancing their prospects for post-service job opportunities. Another important objective of the scheme is the reduction of military costs, in terms of wage and pension expenses.

Recruitment Process

There are two stages to the Agniveer recruitment process; Phase 1 is an online computer-based written test called the CEE, and phase 2 is the recruitment rally. Normalisation of marks is conducted to ensure exam fairness and account for the difficulty of the question paper across different sessions.

After the completion of Phase 1, a cutoff is decided and depending upon the vacancies, the candidates are shortlisted for Phase 2 i.e. the Recruitment Rally. In this phase, there are 4 criteria on which the candidates will be evaluated. The first one is the Physical Fitness Test (PFT). The next test in Phase 2 is the Physical Measurement Test (PMT). This is followed by an Adaptability Test which can be given by candidates who qualify for PFT and PMT. This test evaluates if the candidates can adapt to the challenges of military life. The candidates who pass all the above tests are eligible for the

Medical Examination and further recruitment process.¹⁶

Ser No	Category	Education	Age
(a)	Agniveer (General Duty)	Class 10 th /Matric pass with 45% marks in aggregate and 33% in each subject. For boards following grading system, min of 'D' grade (33% - 40%) in individual subjects or grades with 33% in indi subjects and overall aggregate of 'C2' grade or equivalent corresponding to 45% in aggregate. Note: Candidates with valid Light Motor Vehicle (LMV) Driving License will be given preference for Driver requirements.	17½ - 21 Years
(b)	Agniveer (Technical)	10+2/Intermediate Exam Pass in Science with Physics, Chemistry, Maths and English with min 50% marks in aggregate and 40% in each subject. OR 10+2 /Intermediate exam pass in Science with Physics, Chemistry, Maths & English from any recognized State Education Board or Central Education Board to ind NIOS and ITI course of minimum one year in required field with NSQF level 4 or above. OR 10 th /Matric pass with 50% in aggregate and min 40% in English, Maths and Science with 02 years of Technical Training from ITI or two/three years Diploma from recognized educational institution including polytechnic in following streams only :- (i) Mechanic Motor Vehicle (ii) Mechanic Diesel (iii) Electronic Mechanic (iv) Technician Power Electronic Systems (v) Electrician (vi) Fitter (vii) Instrument Mechanic (viii) Draughtsman (All types) (ix) Surveyor (x) Geo Informatics Assistant (xi) Information and Communication Technology (xii) System Maintenance (xiii) Information Technology (xiv) Mechanic Cum Operator Electric Communication System (xv) Vessel Navigator (xvi) Mechanical Engineering (xvii) Electrical Engineering (xviii) Electronics Engineering (xix) Auto Mobile Engineering (xx) Computer Science/Computer Engineering (xxi) Instrumentation Technology	17½ - 21 Years
(c)	Agniveer (Office Assistant /Store Keeper Technical)	10+2 / Intermediate Exam Pass in any stream (Arts, Commerce, Science) with 60% marks in aggregate and minimum 50% in each subject. Securing 50% in English and Mathematics/Accounts/Book Keeping in Class XII is mandatory.	17½ - 21 Years
(d)	Agniveer Tradesmen 10 th pass	(i) Class 10 th simple pass. (ii) No stipulation in aggregate percentage but should have scored 33% in each subject.	17 ½ - 21 Years
(e)	Agniveer Tradesmen 8 th pass	(i) Class 8 th simple pass. (ii) No stipulation in aggregate percentage but should have scored 33% in each subject.	17 ½ - 21 Years

Seva Nidhi Package

Upon completing the 4-year program, the Agniveers will be eligible to receive the Seva Nidhi Package.

This package comprises the candidates' 30% contribution to the Agniveer Corpus Funds. The 'Seva Nidhi' will be exempt from Income Tax. Suppose a candidate exits at their request before the completion of the program. In that case, the Seva Nidhi package paid to them will include only their contribution plus any accrued interest. Agniveers receive required risk and hardship, ration, dress and travel allowances according to

¹⁵Home: Mygov. Agnipath Yojana | MyGov.in. (n.d.). <https://www.mygov.in/campaigns/agniveer/>

¹⁶For Agniveer intake for recruiting year 2024-25 under ... (n.d.-c). https://www.joinindianarmy.nic.in/writereaddata/Portal/BRAVO_NotificationPDF/ARO_Mhow_Recruitment_Notification_Agniveer_Men_2024-25.pdf

the guidelines established by the government of India.

Year	Customised Package (monthly)	In Hand (70%)	Contribution to Agniveers Corpus Fund	Contribution to Corpus by Govt
1st Year	30000	21000	9000	9000
2nd Year	33000	23100	9900	9900
3rd Year	36500	25500	10950	10950
4th Year	40000	28000	12000	12000
Total Contribution in Agniveers Corpus Fund after 4 years	5.02 Lakh		Rs 5.02 Lakh	
Exit after 4 year	Rs.10.04 Lakhs as Seva Nidhi package (Absolute amount excluding interest)			

An Rs.48Lakh life insurance cover will be provided to the Agniveers for their engagement period in the Indian Armed Forces.¹⁷

In the event of death, the next of Kin (NOK) will receive the following compensation from the Agniveer Corpus Fund:-

In the event of any disability, if any candidate is placed in a Permanent Low Medical Category (LMC), the percentage of disability will be assessed by the officials. The death/disability is classified into 3 categories.

Sl no.	Category	Entitlements of Agniveers
a)	Death during engagement period on Bonafide duty (Category 'Y/Z')	- Insurance Cover of ₹48 lakhs. - One-time ex-gratia ₹44 lakhs. - Full pay for an unserved period of up to four years (with effect from the date of death) including the Seva Nidhi component. - Balance accumulated (as of date) in the individual's Seva Nidhi fund and Govt. contribution including interest from the Agniveer Corpus Fund.
b)	Death during engagement period not on duty (Category 'X')	- Insurance Cover of ₹48 lakhs. - Balance accumulated (as of date) in the individual's Seva Nidhi fund and Govt. contribution including interest from the Agniveer Corpus Fund.
c)	Disability (attributed/aggravated due to conditions of engagement)	- One-time ex-gratia of ₹44/25/15 lakhs based on the percentage of disability (100/75/50) from Public Fund. - Full pay for an unserved period of up to four years (with effect from the date of disability), including the Seva Nidhi component (from Public Fund). - Balance accumulated (as of date) in the individual's Seva Nidhi fund including interest and Govt. contribution from the Agniveer Corpus Fund.

Outputs and Post-Service Opportunities

Upon completion of the engagement period, the candidates are provided with an 'Agniveer' Skill Certificate. This certificate showcases the skills and expertise the candidate has gained throughout the 4-year program.¹⁸

Agniveers won't receive any pensions after the end of their 4-year service. However, up to 25% of the Agniveers would be selected and provided an opportunity for enrolment in the permanent Cadre.

CHALLENGES

Economic Challenges and Role of Agnipath

Maintaining a sizable standing army presents economic challenges, making it essential for India to explore options that economise without compromising military readiness. Proposals include restructuring the Territorial Army to involve reservists in non-combat or combat support roles and reducing "colour service" tenures, allowing military personnel to transition

¹⁷Agnipath Yojana. myScheme. (n.d.). <https://www.myscheme.gov.in/schemes/ay>

¹⁸Agnipath. (n.d.-a). <https://164.100.158.23/AgnipathScheme.htm>

to central police organisations. Optimising logistical support through a better “teeth-to-tail” ratio and suspending specific non-essential units temporarily are further recommendations to manage costs effectively. These measures could free up resources to support modernisation while maintaining operational capabilities.

Recruitment Challenges

India has the second-largest standing military in the world, with approximately 1.4 million active personnel.¹⁹ However, the cost of maintaining such a large force has been steadily rising due to inflation and increased manpower expenses. Additionally, the military faces a significant recruitment bottleneck at the officer level, with the Army alone experiencing a shortage of nearly 13,000 officers against an authorised strength of 40,000.²⁰ This shortage is most severe among junior officers, including Captains and Majors, whose roles are vital in direct combat leadership and soldier morale.

The age profile of military personnel poses another challenge. With an average age of 30-32 years, India’s military workforce is older compared to forces in other nations. Such an age profile could potentially hinder the dynamism and agility required in modern warfare and operations.

The introduction of the Agnipath Scheme on June 14, 2022, aimed to address some of these recruitment and retention issues by offering short-term military service options. However, the scheme has also sparked concerns, particularly regarding the prospects of demobilised Agniveers. Since 75% of Agniveers are expected to exit the military after their four-year tenure

without pension or additional government employment benefits, critics worry about their reintegration into society, especially given their specialised training and familiarity with firearms.

Training Challenges

Effective training is crucial for maintaining operational readiness, but it demands significant time and resources. Under the Agnipath scheme, much of the four-year tenure for Agniveers is spent on training, leaving limited active deployment time. Additionally, the structure of the armed forces—particularly its rigid hierarchical format involving multiple agencies—complicates training efforts and resource allocation.

Moreover, the lack of a streamlined training program for officers further exacerbates these challenges. While the Agnipath scheme reforms recruitment for general personnel, no equivalent program exists to address training bottlenecks for the officer cadre. A revamped Short Service Commission or mandatory military service for central government aspirants, such as IAS or IPS candidates, could potentially alleviate some of these constraints, enhancing discipline within civil services and improving the officer-to-soldier ratio.

Career Integration and Advancement

Career progression in the Indian military is hindered by a pyramidal structure that limits advancement to higher ranks due to a lack of available positions. In 2021-22, only 9,923 officers held ranks of Colonel and above from an authorised officer strength of 75,630.²¹ This structure often results in career stagnation for

¹⁹Active military manpower by country (2024). Global Firepower - World Military Strength. (n.d.). <https://www.globalfirepower.com/active-military-manpower.php>

²⁰Salient issues affecting defence manpower in India - IDSA. (n.d.-i). https://idsa.in/system/files/jds_4_4_gkanwal.pdf

²¹ Government of India. (n.d.-g). <https://sansad.in/getFile/loksabhaquestions/annex/178/AU4929.pdf?source=pqals>

officers who are superseded and remain in service without promotion prospects. Such officers may struggle to contribute to a dynamic, rapidly evolving military force, yet are retained until retirement, further raising the average age profile.

For demobilised Agniveers, career reintegration is an equally pressing issue. Although the Ministry of Home Affairs and the Ministry of Defence have announced 10% reservation quotas in central organisations for Agniveers, and several state governments have offered additional incentives, these measures may not be sufficient to absorb the large numbers of demobilised personnel.²²

GLOBAL MILITARY RECRUITMENT MODELS

U.S.A

To be a part of the USA's army you must be a citizen of the USA and at least 17 years of age. The maximum age differs for each branch of the military. Potential members are contacted through various drives in college and online. Last year however the Army and the Air Force failed to meet their recruitment targets. Air Force: 17 - 42, Army: 17 - 35, Coast Guard: 17 - 41, Marine Corps: 17 - 28, Navy: 17 - 41 and Space Force: 17 - 42²³

Once that is done everyone enlisting in the military must take the Armed Services Vocational Aptitude Battery (ASVAB). Each branch sets its minimum score to join. If selected, a medical exam is conducted to ensure physical fitness post which the training procedure begins.²⁴

The USA has used a draft system to recruit individuals for war such as the Korean War, Vietnam War etc. There is no active draft as of 2024. Federal Law of the USA requires all male US Citizens and Immigrants from the age of 18 to 25 to register with Selective Service. This program is in place to maintain transparency in peacetime and ensure operational readiness of the USA. If authorised by the President and Congress the Selective Service will rapidly provide personnel to the Department of Defense. They also provide an alternative service program for conscientious objectors.

China

Article 45 Citizens of the People's Republic of China shall have the right to material assistance from the state and society when they are aged, ill or have lost the capacity to work. The state shall develop the social insurance, social relief, and medical and health services necessary for citizens to enjoy this right.

The state and society shall guarantee the livelihood of disabled military personnel, provide pensions to the families of martyrs, and give preferential treatment to the family members of military personnel.

The state and society shall assist arrangements for the work, livelihood and education of citizens who are blind, deaf, mute or have other disabilities.

Article 55 It is the sacred duty of every citizen of the People's Republic of China to defend the motherland and resist aggression.

²²(PDF) the case for agnipath. (n.d.-h).

https://www.researchgate.net/publication/362570334_The_Case_for_Agnipath

²³Requirements to join the U.S. military: Usagov. Requirements to join the U.S. military | USAGov. (n.d.).

<https://www.usa.gov/military-requirements>

²⁴It's your country. protect it. Selective Service System. (n.d.). <https://www.sss.gov/>

It is an honourable obligation of citizens of the People's Republic of China to perform military service or join the militia by law.

A set of revised rules regarding military recruitment has been released by the State Council and the Central Military Commission of China in 2023, aiming to provide institutional guarantees for consolidating national defence and building strong armed forces.²⁵

The new regulation, with 74 articles in 11 chapters, focuses on recruiting more high-calibre soldiers, standardising and optimising conscription procedures, and improving the system's efficiency.

Men aged 18 to 22 are subject to selective compulsory military service with a 2-year service obligation. Women aged 18 to 19 who are high school graduates and meet the requirements for specific military jobs are also subject to conscription. The People's Liberation Army (PLA) operates its conscription system as a levy, setting the number of enlistees needed, which results in quotas for each province. These provinces are responsible for providing a set number of soldiers or sailors. If the number of volunteers does not meet the required quotas, local governments may compel individuals to enter military service.

The militia is an armed reserve of civilians which serves as an auxiliary and reserve force for the PLA upon mobilisation, although it is distinct from the PLA's reserve forces. Militia units are organised around towns, villages, urban sub-districts, and enterprises, and vary widely in

composition and mission. They have dual civilian-military command structures. A key component of the militia is the local maritime forces, commonly referred to as the People's Armed Forces Maritime Militia (PAFMM); the PAFMM consists of mariners (and their vessels) who receive training, equipment, and other forms of support from the Navy and CCC (although the PAFMM remains separate from both).²⁶ In June this year, five eye allies warned China in a notice.²⁷ Western recruits who train the PLA (Peoples Liberation Army) may increase the risk of future conflict by reducing our deterrence capabilities. The PLA wants the skills and expertise of these individuals to make its military air operations more capable while gaining insight into Western air tactics, techniques, and procedures," said a public bulletin issued by the U.S., British, Canadian, Australian and New Zealand intelligence services.

The PLA is using private companies in South Africa and China to hire former fighter pilots, flight engineers and air operations centre personnel from Western countries to train its Air Force and Navy aviators, the services said in the notice.

South Korea

South Korea established a conscription-based military system in 1957, making it mandatory for all able-bodied male citizens, aged 18 to 35, to get basic training in the army. Article 39 of the Korean constitution states, "All citizens shall have the duty of national defence under the conditions as

²⁵Weichao, L. (n.d.). *China military*. ChinaMilitary. http://eng.chinamil.com.cn/CHINA_209163/TopStories_209189/16216211.html

²⁶Central Intelligence Agency. (n.d.). Central Intelligence Agency. <https://www.cia.gov/the-world-factbook/countries/china/#military-and-security>

²⁷Us, "Five eyes" allies warn China recruiting western military trainers | Reuters. (n.d.-f). <https://www.reuters.com/world/us-five-eyes-allies-warn-china-recruiting-western-military-trainers-2024-06-05/>

prescribed by the Act". Article 8 under the Military Service Act mentions, "Every masculine gender of the Republic of Korea shall be enlisted for the first citizen service when he attains the age of 18 years." Following this Article, is Article 12 of the Act which mentions the physical and medical grades of the candidate. Upon attaining the age of 19 or sometimes 20, the candidates have to undergo a medical examination for an impairment and disability evaluation to determine if he is suitable for military service. The candidate can be exempted if he is found to have medical and mental issues. In such cases, he can be assigned to alternative services like public/citizen service, public library, post office, etc. According to the Act, there are 7 physical grades. Grades I, II, III and IV include candidates who are physically and psychologically healthy enough to perform active or supplemental service. Grade V includes those who can enter the second citizen service but are unable to engage in active or supplemental service. Those who are unable to serve in the military because of any illness or physical or mental incapacity, are determined at Grade VI. Those who are unable to be rated by subparagraphs 1 through 3 because of any illness or physical or mental incompetence are assigned to Grade VII.²⁸

Recruits who pass the medical tests will undergo a five-week training program which includes physical and mental challenges. Basic weapon handling, military discipline and physical fitness are some of the fundamentals taught to the recruits. After completing the basic training, the recruits are assigned to their respective units and undergo additional training according to their service field. Combat unit members would go through more demanding training, which would

include marksmanship instruction, tactical exercises, and field training. The type of service depends on the Grade that the recruit belongs to. Grades I, II and III will be assigned for Active Duty under which duration for the Army and Marine Corps is 2 years, for the Navy is Two years and two months and for the Air Force is Two years and four months. Grade IV recruits are assigned to Non-Active Duties which include Public Service, Art and Sports Personnel, Industrial Technical Personnel and Public doctors, lawyers, etc. The typical duration range for the same is 22-23 months. However, exemptions are given to certain citizens of South Korea who have achieved National Glory, for instance, Son Heung-min who won the Gold Medal with South Korea in football at the Asian Games 2018.

RESPONSE AND REACTIONS OF STAKEHOLDERS

Ajit Doval, National Security Advisor of India

Ajit Doval firmly emphasised that the Agniveer scheme is a properly planned policy, stating, "There is no question of any rollback. This is not a knee-jerk reaction. This has been discussed for decades."²⁹ He highlighted that the scheme is crucial for the defence force's future, pointing out that "The (idea of) war is undergoing a great change. If we have to prepare for tomorrow, then we have to change."

While rebuking worries that Agniveers would dominate the army, Doval stated, "Agniveers will not constitute the entire army," but will play an essential role in shaping its future. Moreover, he stated the long-term benefits of the scheme, predicting that by the time Agniveers retire,

²⁸Military service act. (n.d.). https://elaw.klri.re.kr/eng_service/lawView.do?hseq=25744&lang=ENG

²⁹"no question of a roll back": NSA Ajit Doval on agnipath scheme amid widespread protests. Hindustan Times. (2022, June 21). <https://www.hindustantimes.com/india-news/we-have-to-change-says-nsa-ajit-doval-amid-agnipath-stir-101655799115038.html>

"India will be a \$5 trillion economy," and industries will seek out these individuals for their discipline and training. Addressing the protests, Doval stated that acts of vandalism "will not be tolerated at all." Furthermore, he labelled concerns regarding Agniveers turning into mercenaries as "totally invalid," reinforcing the stability of the policy.

Defence Analyst Major General Amrit Pal Singh

Amrit Pal Singh accentuated the importance of modernising the military, stating, "We need to ensure that our armed forces are equipped to meet modern challenges." Moreover, he emphasised that effective training for Agniveers is important, mentioning, "Those who transition into regular service will undergo intensive training to integrate them fully into the Army." Addressing the recent protests, Singh asserted that "protests should be constructive; violence only harms our collective interests," highlighting the need for peaceful dialogue and constructive criticism to advance national objectives.

Protests

The protest began on June 14, 2022, shortly after the announcement of the Agnipath Scheme, which offered four-year contractual services to recruits called Agniveers. This provoked an immediate reaction from applicants and groups across India. Protests were widespread and took place in states such as Bihar, Uttar Pradesh, Haryana, Punjab, Rajasthan and Delhi. Large protests took place at railway stations and highways. Disrupts normal activities. Protesters vented their anger by blocking roads, burning trains and clashing with police. In some cases, protesters set government vehicles on fire and clashed violently with law enforcement. Many people were injured. Including at least 15 police

officers during the protest. There was considerable property damage and there were reports of train fires and widespread disruption to train services. Indian Railways reported that at least 34 trains were cancelled. And many other trains ran slowly due to protests. This caused significant inconvenience to travellers and highlighted the disruptive nature of the protests. The opposition joined the protest to demand the reinstatement of the project. They criticised the government for what they called the "contracting out" of military work and argued that the government had undermined the integrity of the military.³⁰ Despite protests, government officials including National Security Adviser Ajit Doval, said there would be no reversing the launch route project. They stressed the need to modernise the armed forces. And adapt to new security challenges.

PARTY POSITIONS

National Democratic Alliance (NDA)

Bharatiya Janata Party

BJP and NDA stand in support of the Agniveer scheme, as they see it to be a crucial step in modernising and strengthening the Indian Armed Forces. The Prime Minister has called it a revolutionary policy, stating that "it will empower our youth for the future". The Honourable Defence Minister Rajnath Singh also stood in support of the scheme. Moreover, the defence minister stressed the fact that this scheme provides the youth with an opportunity for extensive personal growth. Furthermore, BJP President J.P. Nadda highlighted the scheme's potential to create a disciplined, skilled workforce for the nation's economy, saying that it is "a unique opportunity for young Indians to

³⁰Protests against India's new Military Recruitment System Turn Violent | Reuters. (n.d.-f). <https://www.reuters.com/world/india/protests-break-out-india-over-new-military-recruitment-system-2022-06-16/>

serve the nation and then contribute to its growth."

Janata Dal (United)

"A section of voters has been upset over the Agniveer scheme. Our party wants those shortcomings which have been questioned by the public to be discussed in detail and removed," said JD(U) spokesperson KC Tyagi.

Indian National Developmental Inclusive Alliance (I.N.D.I.A.)

Indian National Congress

The Indian National Congress stands poles apart from the ruling party, supporting a more stable and permanent recruitment model. Prominent leaders like Rahul Gandhi have raised concerns that this scheme would turn the military into "contractual armies". A.K. Anthony has raised his voice calling the policy "harmful to national security".

The Congress Manifesto for general election 2024 states the following:-

"Abolish the Agnipath programme and direct the Armed Forces (Army, Navy, Air Force and Coast Guard) to resume normal recruitment to achieve the full sanctioned strength." "Congress will scrap the Agnipath Scheme and return to the normal recruitment processes followed by the Army, Navy and Air Force that will guarantee economic and social security for our soldiers."³¹

Aam Aadmi Party

Similar to the INC, leaders from AAP like the former Delhi Chief Minister Arvind Kejriwal have stood in support of a much more robust and

permanent recruitment process stating that the current scheme offers an "uncertain future" for the youth and "undermines the long term strength of the military".

Samajwadi Party

Similarly, the Samajwadi Party have stood against the scheme, with the most prominent party leader, Akhilesh Yadav calling the scheme "unjust" towards the youth, offering short-term employment without job security and raising similar concerns about the strength of the military.

State Governments

Haryana

The state government of Haryana, under the former chief minister Manohar Lal Khattar, announced the classification of Agniveers who have completed their service for Group C positions in the Haryana government jobs. Furthermore, the former chief minister has stood in support of the Agniveer scheme and promised state government jobs along with other benefits for Agniveers.³²

Uttarakhand

Similar to Haryana, the Uttarakhand government has stood in support of the Agniveer scheme, promising prioritisation of Agniveers in state government jobs. The chief minister Pushkar Singh Dhanni has voiced support for the scheme, in light of Uttarakhand's traditional military service, viewing it as an opportunity for Uttarakhand's youth to serve the nation and gain stable employment post-end of service.

³¹Introduction: Nyay Patra: Manifesto: Lok Sabha elections 2024: Indian National Congress. Manifesto. (n.d.). <https://manifesto.inc.in/en/introduction/>

³² Bureau, T. H. (2022, June 21). Haryana CM announces "guaranteed" State Govt. jobs for Agniveers after four-year service. <https://www.thehindu.com/news/national/other-states/haryana-cm-announces-guaranteed-state-govt-jobs-for-agniveers-after-four-year-service/article65547954.ece>

Agenda 2: Discussing Reforms in the Indian Criminal Justice System to Uphold Rule of Law

INTRODUCTION

The criminal justice system (the court, the police and the prison administration) is considered one of the arms of democracy that holds order, renders justice without discrimination and guarantees the rights of the citizens. To maintain the faith of the public in the legal system and to avoid social unrest, an effective and reliable criminal justice framework is important as it addresses the justice needs of society. An optimally functioning and credible criminal justice system is fundamental to the respect of the legal institution, orderliness, and satisfying justice requirements of the society. The importance of fixing backlogs and timely delivery of justice cannot be emphasised enough for the people's trust and access to justice systems.

In the field of policing, there have been conversations about the promotion of accountability, transparency and improvement of police practices. Bureaucracy within law enforcement processes helps to build confidence in the system and safeguard the rights of individuals. The ever-straining need for effective policing without crossing the boundaries of fair and ethical practices over the years has been a driving force for many stakeholders and policymakers. This area of concentration presents an opportunity to examine possible reforms that can improve the effectiveness and efficiency of the criminal justice system. In the course of the said discussions, this effort seeks to meaningfully aid in the building of a criminal justice system which is not only fair and open, but also accessible to all, as such, upholding and further building the very core foundation of justice in a democratic society.

BACKGROUND

During the period of the Charter Act of 1833, British colonial policies in India aimed to consolidate power and standardise legal orders across a diverse population. Before this, India lacked a unified legal system, with each province operating under distinct legal regimes informed by local customs, cultures, and religions. This legal pluralism complicated justice delivery, which the British perceived as a disorganisation that could undermine their imperial objectives. Consequently, they implemented centripetal measures to unify these disparate legal systems for more effective administration.

The Charter Act of 1833 conferred legislative authority to the Governor-General's council for all of British India, centralising legislative activities and imposing British legal codes on the native population. The establishment of the Legislative Council led to the repeal of many long-standing traditional laws. Legislation such as the Indian Penal Code (1860) exemplified the British approach of legal assimilation, extending concepts of crime and punishment from British society to culturally distinct populations.

Further legal centralisation was pursued through the establishment of the Law Commission, which aimed to reform the Indian legal system. However, the majority of these reforms emphasised British legal practices rather than accommodating local traditions. Alongside the Indian Evidence Act and Indian Contract Act, these measures sought to ensure uniformity in legal principles nationwide. While these changes occasionally improved the justice system, many Indians viewed them as extensions of British imperial control rather than genuine legal enhancements. Nonetheless, the legal framework established during this period laid

the foundation for India's modern legal order, illustrating the enduring impact of British legal centralisation.

COMPONENTS OF THE CRIMINAL JUSTICE SYSTEM

Courts

The Judiciary, as the third branch of government, is tasked with applying laws and settling disputes. The true 'meaning of law' is derived from judicial decisions, which define and interpret laws through judgments in individual cases. For citizens, the Judiciary serves as a crucial government organ, safeguarding against potential overreach by the legislative and executive branches. Its role as the protector of the Constitution and fundamental rights grants it a unique and respected position among government branches.

The Judiciary's role as the Constitution's guardian is clear, yet this responsibility is becoming more challenging due to the increasing burden on the courts. In recent years, the judicial system has been strained by a severe backlog of cases. In 2023, for instance, 34 Indian Supreme Court judges handled approximately 70,000 cases.³³ In November 2018, 40% of the cases in the court had been pending for more than five years - up from 7% in 2004. Another 8% of the cases were pending for more than a decade. On average, cases took around 13 years and six months from initiation in trial courts to disposal by the Supreme Court. The top court's proceedings accounted for about a third of the total time, similar to the average duration at each tier of the judiciary. Case durations varied significantly,

with the slowest cases taking more than four years to resolve, while the fastest cases took about three months from filing to disposal. On average, tax matters took around four years to be decided in court, making them the most time-consuming and impactful cases for the exchequer.

The implementation of judicial reforms in India is not a straightforward affair as it involves the issue of judicial authority and its independence from external political interference in the efficient running of the government.³⁴ As the power of judicial review vested within the courts makes them crucial for government oversight, reforms aimed at curbing this power risk undermining the court's constitutional mandate. Even well-intended reforms, such as enforcing time limits for judgments, may inadvertently lead to the very injustices they aim to prevent. Moreover, potential changes to the collegium system for judge appointments raise concerns about politicisation, making the reform process particularly sensitive and challenging.

Police

The primary role of police forces is to uphold and enforce laws, investigate crimes and ensure security for people in the country. In a large and populous country like India, police forces need to be well-equipped, in terms of personnel, weaponry, forensics, communication and transport support, to perform their role well. Further, they need to have the operational freedom to carry out their responsibilities professionally, and satisfactory working conditions (e.g., regulated working hours and promotion opportunities), while being held

³³Biswas, S. (2023, July 30). *Supreme Court: Why India's powerful top court is in a "crisis."* BBC News. <https://www.bbc.com/news/world-asia-india-66292895>

³⁴Pratik Datta. (n.d.). *How to start resolving the Indian judiciary's long-running case backlog.* Carnegie Endowment for International Peace. <https://carnegieendowment.org/research/2021/09/how-to-start-resolving-the-indian-judiciarys-long-running-case-backlog?lang=en>

accountable for poor performance or misuse of power. Most countries including India, have implemented measures to avoid abuse and ensure the use of power, by making the police agencies accountable to the political leadership and also instituting external bodies to oversee the police.

Police have the power to investigate crimes, enforce laws and maintain law and order in a state. To ensure that such power is only used for legitimate purposes, various countries have adopted safeguards such as making police accountable to the political executive and creating independent oversight authorities.

In India, the political executive (i.e., ministers) has the power of superintendence and control over the police forces to ensure their accountability. However, the Second Administrative Reforms Commission has noted that this power has been misused, and ministers have used police forces for personal and political reasons. Hence, experts have recommended that the scope of the political executive's power must be limited under the law.

CAG audits have found shortages in weaponry with state police forces. For example, Rajasthan and West Bengal had shortages of 75% and 71% respectively in required weaponry with the state police.

The Bureau of Police Research and Development has also noted a 30.5% deficiency in stock of required vehicles (2,35,339 vehicles) with the state forces.³⁵

However, funds dedicated to the modernisation of infrastructure are typically not utilised fully.

For example, in 2015-16, only 14% of such funds were used by the states.

Prisons

Under the Government of India Prisons Act, 1870 prison means any goal or penitentiary including the airing grounds and other grounds or buildings engaged for the use of detention of prisoners permanently or temporarily under the general and special orders of a Local Government.

The Indian prison system is spread across different categories, such as central, district, and sub-jails, and women's and young offenders' jails. These institutions are containment facilities but also places of rehabilitation, where inmates are rehabilitated to reintegrate them into society.

Technologically, the ICJS has been of much benefit to the prison system through the "e-Prisons" module, allowing real-time tracking of information about inmates, thus providing streamlined coordination between police, courts, and correctional facilities. The integration aims at improving transparency, reducing administrative workload, and making inmate records accessible across criminal justice institutions, addressing both the needs for data integrity and efficiency.³⁶

'Prisons'/persons detained therein' is a "State-List" subject. Administration and management of prisons and prisoners is therefore the responsibility of respective State Governments/UT administrations.³⁷

The Government of India has signed Agreements with 31 countries namely Australia, Bahrain,

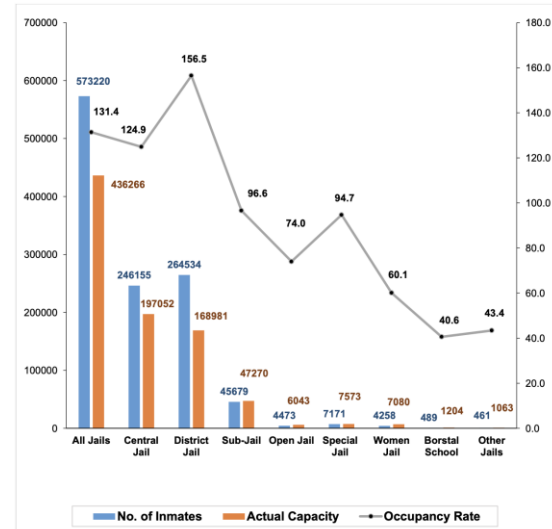
³⁵Annual report 2019-20. (n.d.-b). <https://bprd.nic.in/uploads/pdf/Annual%20Report.pdf>

³⁶Inter-operable criminal justice system (icjs). (n.d.-j). <https://www.mha.gov.in/en/commoncontent/inter-operable-criminal-justice-system-icjs>

³⁷ Women Safety Division | Ministry of Home Affairs. (n.d.-r). <https://www.mha.gov.in/en/divisionofmha/women-safety-division>

Bangladesh, Bosnia & Herzegovina, Brazil, Bulgaria, Cambodia, Egypt, Estonia, France, Hong Kong, Iran, Israel, Italy, Kazakhstan, Korea, Kuwait, Maldives, Mauritius, Mongolia, Qatar, Russia, Saudi Arabia, Somalia, Spain, Sri Lanka, Thailand, Turkey, UAE, United Kingdom and Vietnam. In addition to the above, India has signed two multilateral conventions on the transfer of sentenced persons, namely the Inter-American Convention on Serving Criminal Sentences Abroad and the Council of Europe Convention on Transfer of Sentenced Persons. By these sentences, persons of member States and other countries which have signed or acceded to these conventions can seek transfer to their native countries to serve the remainder of their sentence in their home country.

States/UTs regarding the population of inmates in various prisons as of 31st December 2022 (Table 1.2) that the prison population was manageable at the end of the year 2022 (as of 31st December 2022) in 7 States and 4 UTs as the occupancy rate in these States/UTs remained less than 100%. Central and district prisons remained the most overcrowded. The number of undertrial prisoners has increased from 4,27,165 in 2021 to 4,34,302 in 2022 (as of 31st December of each year), having increased by 1.7% during this period. b. Among the 4,34,302 undertrial prisoners, the highest number of undertrial prisoners was lodged in District Jails (52.1%, 2,26,386 undertrials) followed by Central Jails (35.8%, 1,55,528 undertrials) and Sub Jails (9.8%, 42,652 undertrials) as on 31st December, 2022.



Source: NCRB

The overcrowding in the prisons leads to unsatisfactory living conditions. Unsatisfactory living conditions continue in many prisons around the country. A special commission of inquiry, appointed after the 1995 death of a prominent businessman in India's high-security Tihar Central Jail, reported in 1997 that 10,000 inmates held in that institution endured serious health hazards, including overcrowding, "appalling" sanitary facilities and a shortage of medical staff.

The Government of Andhra Pradesh has been implementing the sponsored Dr YSR Aarogyasri Health Scheme since 2007 to provide medical treatment to the general public free of cost.

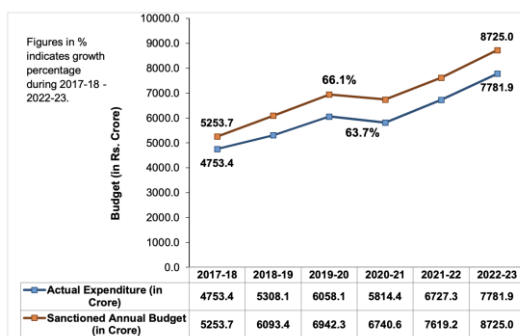
In Bihar, the prison administration facilitates the arrangement of regular periodic medical camps wherein specialist doctors visit the prison and render specialised counselling and treatment to the inmates. The prison administration ensured the vaccination of all staff and inmates by organising regular and periodic vaccination camps.

Similarly, several states have taken a direction towards maintaining a standard of living in prisons. A focus of these prisons has also been

providing adequate mental health support and vocational training.³⁸

The sanctioned budget for the year 2022-23 (Rs.8,725.0 crores) has increased by 14.5% in comparison to the year 2021- 22 (Rs. 7,619.2 crores) at the All-India level.

West Bengal, Punjab, Madhya Pradesh, Uttar Pradesh, Bihar, and Delhi reported relatively higher spending on medical expenses during that year, while Bihar, Karnataka, and West Bengal reported relatively higher spending on vocational and educational activities. Tamil Nadu, Orissa, and Chattisgarh reported that there is relatively higher spending on welfare activities regarding the prison.



Sanctioned Annual Budget vis-à-vis Actual Expenditure during 2017-2018 to 2022-2023

Source: NCRB

Laws

BNS

The Bharatiya Nyaya Sanhita (BNS), 2023 aims to streamline and modernise India's legal framework by consolidating numerous existing laws into a cohesive structure. It addresses various aspects of civil, criminal, and

administrative law, aiming to simplify legal procedures and enhance accessibility to justice. This unified approach is intended to reduce ambiguity and promote consistency in judicial decisions.³⁹

PHRA (1993)

The Protection of Human Rights Act (PHRA) was introduced on September 28, 1993.⁴⁰ The Act's main purpose is to protect the human rights of Indian citizens. It defines human rights as "rights relating to life, liberty, equality, and dignity of the individual". The Act established The National Human Rights Commission (NHRC), a State Human Rights Commission (SHRC) for each state and the Human Rights. Authority was granted by the Act to the NHRC to look into claims of human rights abuses and intervene in legal actions regarding the same. The Human Rights Courts were founded to provide speedy trials of the offences that arose out of violation of human rights.

RTI (2005)

Right to Information Act 2005 mandates timely response to citizen requests for government information. The basic object of the Right to Information Act is to empower the citizens, promote transparency and accountability in the working of the Government, contain corruption, and make our democracy work for the people in a real sense. An informed citizen is better equipped to keep necessary vigil on the instruments of governance and make the government more accountable to the governed.

³⁸2022 prison statistics india. (n.d.-a).

<https://www.ncrb.gov.in/uploads/nationalcrimerecordsbureau/custom/psiyarwise2022/1701613297PSI2022ason01122023.pdf>

³⁹Exploring India's new criminal laws: A paradigm shift in legal framework. MyGov Blogs. (n.d.).

<https://blog.mygov.in/exploring-indias-new-criminal-laws-a-paradigm-shift-in-legal-framework/#:~:text=The%20Bharatiya%20Nyaya%20Sanhita%20>

⁴⁰The Protection of Human Rights Act, 1993. (n.d.-n). https://nhrc.nic.in/sites/default/files/PHRAAct_2021_o.pdf

BNSS

The Code of Criminal Procedure, 1973 (CrPC) is a procedural law established for the administration of the Indian Penal Code. It governs the procedure for investigation, arrest, prosecution, and bail for offences. The CrPC was first passed in 1861 to address the problem of the multiplicity of legal systems in India. The Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) was introduced on August 11, 2023, to replace the CrPC. It amends provisions on bail, expands the scope of property seizure, and alters the powers of police and Magistrates. The Bill has been examined by the Standing Committee on Home Affairs.

Inheritance Laws

In India, inheritance is regulated by personal law based on religion or the Indian Succession Act of 1925. The Hindu Succession Act of 1956 provides daughters with equal rights in inheritance. In the case of Muslims, fixed shares apply to all heirs based on the principles of the Islamic religion. For Christians and Parsis, inheritance falls under the Indian Succession Act, though with specifics for the community in question. Inheritance is passing a dead person's assets and liabilities to the relevant beneficiaries either through a will or intestate succession.⁴¹

A will is valid if made by an adult of sound mind and free from coercion. It must be made in the presence of two witnesses and signed by the testator. The issues in a will may need to be contested based on accusations of forgery, coercion, or doubts regarding the testator's mental state or signature authenticity.

Marriage Laws

Child marriage in India was addressed for the first time by the Child Marriage Restraint Act of 1929, which set the minimum age at 14 years for girls and 18 years for boys. It was amended in 1978 to set the age at 18 years for females and 21 years for males. The Prohibition of Child Marriage Act, of 2006 retained those limitations; the Prohibition of Child Marriage (Amendment) Bill, 2021 looks to increase that minimum at least to the age a woman can marry to 21 years.⁴²

This legal framework is in contention with the decisions of the Supreme Court. In 2018, the Court held that the right to marry falls within the right to life under Article 21 and that such a right could be restricted only through fair and reasonable laws. An age limit will bring to the fore questions about legal standards for reasonable restrictions.

Since religion differs from one community to the other, the divorce procedure varies. Since false reasons for divorce lead to economic and social losses, a divorce process needs to be transparent. Under Islamic law, Talaq-e-Hasan is a process through which a man can initiate a divorce by uttering talaq three times within one-month gaps, and during the 90-day iddat period, the divorce is nullified if the parties resume cohabitation.⁴³

Immigration Laws

The absence of national refugee laws has blurred the lines between refugees and economic migrants, often denying assistance to genuine asylum seekers. This issue gained prominence

⁴¹Hindu Succession Act, 1956. (n.d.-d). <https://ncwapps.nic.in/acts/TheHinduSuccessionAct1956.pdf>

⁴²Digital Sansad. (n.d.-c). <https://sansad.in/getFile/BillsTexts/LSBillTexts/Asintroduced/106 of 2020 As Int....pdf>

⁴³Mphc. (n.d.-i). https://mphc.gov.in/upload/jabalpur/MPHCJB/2024/MCRC/10265/MCRC_10265_2024_FinalOrder_13-Mar-2024.pdf

with the Citizenship Amendment Act (CAA) enacted in 2019, which provides an expedited path to citizenship for undocumented migrants from Afghanistan, Bangladesh, and Pakistan belonging to six religious communities while explicitly excluding Muslims. Migration remains a contentious issue, particularly in Assam, where the National Register of Citizens (NRC) process, mandated by the Supreme Court, aimed to identify legitimate residents. The final draft excluded 1.9 million Assamese residents, raising questions about their future. The CAA may offer a pathway to citizenship for those excluded, contingent upon their status as minorities in neighbouring countries. Establishing specialised immigration courts and enhancing border security could improve the differentiation between economic migrants and refugees.⁴⁴

CHANGES IN BNS AND BNSS

While major structural changes were not observed both the BNS and BNSS had significant changes from their counterparts i.e. the IPC and the CrPC.

Changes in BNS

Current deletions and insertions in BNS are very heavy in recent amendments. One major one is the abolition of Section 377 completely- this means that consensual unnatural sexual acts, whether sodomy or bestiality, are no longer offences. There is no special provision for any other kind of non-consensual sexual offence against males and females and transgender. Differential punishment for the gang rape of minor girls has also been removed. Section 70(2) now prescribes life imprisonment or death for gang rapes of women under 18.

Sedition has been repealed and new offences have been enacted in Sections 152 and 197(1)(d) relating to secession, armed rebellion, separatist activities, and threats to national integrity and security. In Section 153, the phrase "any Asiatic power in alliance" has been substituted with "Government of any foreign State at peace."

Many additions pertain to new and updated criminal offences. Attempted suicide is decriminalized, following the Mental Healthcare Act of 2017, but Section 226 criminalises attempts to blackmail public servants through self-harm. Section 303, which was held unconstitutional by the Supreme Court, has been partially revived with life imprisonment as an alternative punishment for murder by a convict sentenced to life. Theft laws have now covered intangible goods, intellectual property, idols, and government property, while Section 343(3) has provided penalties for having forged seals.⁴⁵

Community service has been added as a form of punishment, although its scope is defined elsewhere under BNSS Section 23. Lastly, Section 95 states that using children for the commission of crimes warrants imprisonment between three and ten years, in addition to any other penalty provided for that crime if committed.

Changes in BNSS

Offences were separated into cognisable in which an arrest can be made without a warrant and recognisable where warrants are required. Bailable and non-bailable offences were also clearly defined.

If an accused can have spent more than half of the maximum imprisonment in detention, they can be released on personal bonds unless they're punished by death under the CrPC. The BNSS

⁴⁴Citizenship (amendment) Bill, 2019. (n.d.-c).

https://loksabhadocs.nic.in/Refinput/New_Reference_Notes/English/09122019_104728_1021205239.pdf

⁴⁵ Comparison summary BNS to IPC. (n.d.-a). <https://bprd.nic.in/uploads/pdf/COMPARISON>

extended this exception to life imprisonment and prisoners having proceedings pending in more than one offence.⁴⁶ BNSS also now requires the authorisation of at least a sub-inspector before conducting medical examinations in certain cases. It has also taken the step to set timelines for certain court procedures under offences.

Result of Changes

Abortion Rights

Clauses 86 to 90 of the Bharatiya Nyaya Sanhita (BNS) Bill deal with offences relating to causing miscarriage. These have been reproduced word-for-word from Sections 312 to 316 of the existing Indian Penal Code. These sections penalise anyone carrying out an abortion, even with the consent of the woman, unless such an abortion is necessary to save the life of a woman. The penalties are harsher if the woman is in more advanced stages of pregnancy. The IPC is also very clear that a woman can be punished for causing a miscarriage, even if she consented to one.⁴⁷

The Trucker's Protest

Transporters and commercial drivers from States like Maharashtra, Chhattisgarh, West Bengal, and Punjab have staged protests against the recent legislation concerning hit-and-run incidents. Section 106 (2) of the Bharatiya Nyaya Sanhita, 2023 (BNS) stipulates a penalty of up to 10 years in jail and a fine for fleeing an accident spot and failing to report the incident to a police

officer or a magistrate. This law is in addition to the colonial-era provision on causing death due to rash or negligent acts under Section 304A of the Indian Penal Code, 1860. Protestors are demanding the withdrawal or amendment of Section 106 (2), backed by the threat of a nationwide strike if their demands are not met. They argue that while strict action in hit-and-run cases is necessary, the new law has several flaws that need reconsideration.⁴⁸

Failure to recognise a rape victim as "male" or an "animal"

Under Section 375 of the Indian Penal Code (IPC), rape was defined specifically as an offence against women. Section 377 criminalised "intercourse against the order of nature" for any individual, including men, women, or animals; however, the Supreme Court's interpretation limited its scope to exclude consensual adult relations.⁴⁹

Consequently, forced intercourse with an adult male remains unrecognised as a criminal offence under the Bharatiya Nyaya Sanhita (BNS), nor does intercourse with an animal. Rape of children, regardless of gender is an offence under the POCSO Act, 2012.

Congestion in Prison Systems

Restricting bail, and limiting the scope for plea bargaining could deter decongesting of prisons. As of December 2021, India's prisons housed over 5.5 lakh prisoners, with an overall occupancy rate

⁴⁶Comparison summary BNSS to crpc.pdf. (n.d.-a).

<https://bprd.nic.in/uploads/pdf/Comparison%20summary%20BNSS%20to%20CrPC.pdf>

⁴⁷ Kumar, A. P. (n.d.). *Bharatiya Nyaya Sanhita, still stuck in colonial era, fails women on Abortion*. Deccan Herald.

<https://www.deccanherald.com/opinion/bharatiya-nyaya-sanhita-still-stuck-in-colonial-era-fails-women-on-abortion-2703789>

⁴⁸ Bajpai, G. S. (2024, January 10). *Debating India's new hit-and-run law: Explained*. The Hindu.

<https://www.thehindu.com/news/national/debating-indias-new-hit-and-run-law-explained/article67720776.ece>

⁴⁹1, C. com J. (2024, July 1). *New criminal laws have no recognition for male rape victims* - CNBC TV18. CNBCTV18.

<https://www.cnbctv18.com/india/new-indian-criminal-laws-fail-to-recognise-male-rape-victims-19436278.htm>

of 130%.²⁰ In 2021, under-trials constituted 77% of the total prisoners in India.⁵⁰ Approximately 30% of under-trial prisoners were in detention for a year or more.²⁰ About 8% of under-trial prisoners were in detention for three years or more.

Infringement of Personal Liberty

Certain provisions under the BNSS like the use of handcuffs under section 43 and the overall altered procedure of police custody under section 187 have gone against past court proceedings. The use of handcuffs was ruled as inhumane, unreasonable, arbitrary and repugnant to Article 21 by the Supreme Court. The Standing Committee was set up to review such changes and eventually gave out recommendations for several amendments to the BNSS.⁵¹

PAST ACTIONS

Malimath Committee

On November 24, 2000, the Malimath Committee, led by Justice V.S. Malimath, former Chief Justice Karnataka and Kerala High Courts, was constituted by the Ministry Of Home Affairs to deal with the reforms in India's Criminal Justice System(CJS). The 11-member committee, which included judges and lawyers, consulted stakeholders like legal professionals and civil society groups. The committee proposed a 158-point recommendation report in 2003. Some of the important recommendations given by the committee were as follows:-

1. Implement certain features of the Inquisitorial System to India's current Adversarial Criminal Justice system. The current adversarial system requires the prosecution to prove its case beyond

a reasonable doubt and mandates that the judge operate impartially. Because of multiple flaws in the current system, many offenders can evade punishment under the current system. As such If specific aspects of the Inquisitorial system were implemented, it would be a preferable substitute. The committee used examples of nations like France, Germany, and Italy which adopted the Inquisitorial system.

2. Victims must be able to participate in cases involving significant crimes and be compensated appropriately. When a victim has passed away, their attorney should be permitted to participate in trials involving grave crimes. Additionally, the state must pay for the victim's preferred attorney. In all situations of serious crime, the state is responsible for providing compensation to victims. The committee also suggested creating a special Victim Compensation Fund that might contain money taken from organised crime.

3. There should be a separation of the investigation wing from Law and Order. The committee further recommended the setting up of a National Security Commission and State Security Commissions. It insisted upon the appointment of an Additional SP in each district to maintain crime data, the organisation of specialised squads to deal with organised crime, and a team of officers to probe inter-state or transnational crime.

4. The period for filing the charge sheet should be increased from 90 days to 180 days. Further, if the charge sheet is not filed within 180 days then the detainee must be released on bail.

5. Suggested an increase of the days of 'Remand' (Section 167) from 15 days to 30 days in cases where the punishment is more than 5 years.

⁵⁰2022 prison statistics india. (n.d.-a).

<https://www.ncrb.gov.in/uploads/nationalcrimerecordsbureau/custom/psiyearwise2022/1701613297PSI2022ason01122023.pdf>

⁵¹Standing Committee Report 2023. Home. (n.d.). <https://prsindia.org/billtrack/prs-products/standing-committee-report-summary-4278>

6. According to Section 25 of the Indian Evidence Act, any confession that is made before the police officer is not admissible as evidence in a court of law, but upon incorporating Section 32 of POTA (Prevention of Terrorism Act 2002) and Section 15 of TADA (Terrorist and Disruptive Activities (Prevention) Act 1985), confessions made before the superintendent of police or any officer of above this rank, in any form, audio or video, irrespective of the fact whether the person is in custody or not, is admissible as evidence in court. The committee further added that the person would have a right to counsel.

7. The standard of proof should be reduced to increase the conviction. The committee laid down that, the view that the “prosecution has to prove their case beyond the reasonable doubt” has to change.

8. The Committee proposed an amendment to Section 313 of the Code of Criminal Procedure, suggesting the addition of a clause that would permit the court to draw appropriate inferences, including negative ones, i.e., if the accused chooses not to answer questions posed by the court or remains silent when questioned, provided there is no legal obligation to respond. To support this change, the Committee referenced Article 20(3) of the Indian Constitution, which protects the accused from being compelled to testify against themselves but does not prevent the court from making reasonable inferences based on their silence.⁵²

Criminal Law (Amendment) Act, 2013

The 2012 Nirbhaya gang rape case ignited widespread protests across India and prompted the establishment of a committee to recommend revisions to laws governing sexual offences,

chaired by Retired Justice J.S. Verma. The Verma Committee Report, submitted on January 23, 2013, proposed significant changes that culminated in the Criminal Law (Amendment) Act, 2013, amending various sections of the Indian Penal Code (IPC) and the Code of Criminal Procedure (CrPC).

A notable amendment introduced under IPC Section 166 imposes penalties on officers who neglect to file FIRs in cases involving crimes against women, including sexual offences. Additionally, Section 166B mandates that individuals in charge of public or private hospitals who violate Section 357C of the CrPC—requiring free treatment for rape victims—may face imprisonment for up to one year, a fine, or both. The age of consent was raised from 16 to 18 years, and the provision allowing courts to exercise judicial discretion in imposing sentences below minimum penalties was eliminated.

Section 376 was restructured into three sub-sections: Section 376D addresses gang rape, establishing that individuals acting with a common intent are deemed equally culpable, facing a minimum of 20 years of rigorous imprisonment, extendable to life imprisonment, along with fines. Section 376A pertains to rape resulting in the victim's death or persistent vegetative state, while Section 376E targets repeat offenders, stipulating the death penalty as a possible punishment for both sections. Furthermore, the penalty for a husband engaging in sexual intercourse with his ex-wife without her consent was increased to a minimum of two years and a maximum of seven years imprisonment.⁵³

The amendment also introduced a seventh sub-clause to Section 100, permitting a victim to kill an attacker in self-defence during an acid attack.

⁵²Committee on reforms of the criminal justice system. (n.d.-e). https://www.mha.gov.in/sites/default/files/2022-08/criminal_justice_system%5B1%5D.pdf

⁵³The Criminal Law (Amendment) ordinance 2013. (n.d.-o). [https://police.py.gov.in/The Criminal Law \(Amendment\) Ordinance 2013.PDF](https://police.py.gov.in/The Criminal Law (Amendment) Ordinance 2013.PDF)

Special provisions under Section 154(1) mandate that FIRs for specific offences such as sexual assault and harassment must be recorded by a female police officer. The FIR should be taken at the victim's residence or a location of their choice, particularly if the victim is physically or mentally disabled, and must be conducted in the presence of an interpreter. Additionally, the FIR process, including the victim's statement, must be video recorded by Section 164 of the CrPC.

GLOBAL SYSTEMS

Denmark

The Danish criminal justice system developed in the 18th and 19th century into an adversarial system, consisting of the questioning of witnesses and the elucidation of material proof, and is administered by the Ministry of Justice.⁵⁴ The law is monistic in nature, however this does not mean major offences are treated in the same manner as petty offences. The state police are administered by the Ministry of Justice. Denmark is divided into 54 police districts, each consisting of a local chief, plain-clothes criminal investigators, uniformed patrolmen, traffic police officers, immigration police, and other categories. The National Commissioner reports to the Minister of Justice. Denmark's judicial system guarantees several rights to the defendant, including fair trial, legal representation and the right to appeal. There are no special courts in Denmark, therefore juvenile crime falls under the jurisdiction of city courts. Denmark has abolished the death penalty for all crimes, and emphasises the need for rehabilitation instead of punishment. This is exacerbated by Denmark's open prison system, which are designed to create humane correctional environments so that inmates can be

reintegrated into society. This is achieved by making the inmate responsible for their own hygiene, food, laundry and expenses.

Germany

The German legal system is unique and provides greater freedom to the judges in passing verdicts. The German legal system provides no minimum penalty for not-serious crimes committed while serious crimes are punishable by at least 1 year of imprisonment but does provide the maximum penalty possible. Further, the German Penal Code has banned capital punishment.⁵⁵ This turns the focus of the legal system to rehabilitation of the criminals rather than punishment. The Judiciary in Germany is divided into multiple levels – Local Courts, Regional Courts, Appellate and a Federal Court. Currently Germany has sixteen state police forces and three federal law enforcement agencies. The prisons in Germany are classified into open or closed institutions. The Open institutions have minimal restrictions like lack of high security walls, fences or armed guards while the closed institutions are heavily monitored with high level security. The conditions of these prisons vary according to the sentences imposed and conditional release may be granted for good behaviour. Usually inmates may pursue degrees from within the prisons, many even providing e-learning platforms and conduct. This improves the chances of vocational training and workshops that even provide certificates to rehabilitate the convicts into society,

⁵⁴World Factbook of criminal justice systems - Denmark. (n.d.-x). <https://bjs.ojp.gov/content/pub/pdf/wfbcjds.pdf>

⁵⁵*Countries that have abolished the death penalty since 1976*. Death Penalty Information Center. (n.d.-a). <https://deathpenaltyinfo.org/policy-issues/international/countries-that-have-abolished-the-death-penalty-since-1976>

PARTY POSITIONS

BJP

The BJP Manifesto for 2024 states the following:-
“We will completely overhaul the commercial and civil justice systems, on the lines of criminal justice reforms. This revamp will aim to streamline procedures, and enhance the efficiency of legal processes and reforms. This revamp will aim to streamline procedures, enhance the efficiency of legal processes and ensure timely justice, fostering a more business-friendly and citizen-centric legal environment.”
The manifesto also states a need to modernise policing: “We will assist states in transforming the police into a tech-savvy, tech-trained and tech-equipped force through the Police Modernisation Schemes”⁵⁶

After the BJP-led NDA government brought about major overhauls with the introduction of the BNS, several party ministers including Home Minister Amit Shah held interviews. He stated that India's new criminal justice laws aim to modernise the system and replace outdated colonial-era codes. These laws focus on delivering justice swiftly, with cases expected to be resolved within three years. Victims are given more rights, such as the ability to track their cases through digital updates and zero FIRs. The reforms also

include provisions for community service for minor offenders and stricter penalties for crimes like mob lynching, terrorism, and sedition, ensuring a balance between justice and public safety while reducing delays.⁵⁷

Indian National Congress

The INC in its manifesto stated the following:
“We promise to decriminalise the offence of defamation and provide, by law, a speedy remedy by way of civil damages.”⁵⁸

We promise to enact a law on bail that will incorporate the principle that ‘bail is the rule, jail is the exception’ in all criminal laws.” In response to the Bharatiya Nyaya Sanhita coming into action, the congress had some contentions regarding the added articles.⁵⁹

Mr Kharge said, “After the political and moral shock in the elections, Modi ji and the BJP are pretending to respect the Constitution, but the truth is that the three laws of the criminal justice system which are being implemented from today, were passed forcibly after suspension of 146 MPs.” Senior Congress leader P. Chidambaram also said it was another case of “bulldozing” existing laws and replacing them with three new bills without adequate discussion and debate.⁶⁰

⁵⁶BJP manifesto 2024. Bharatiya Janata Party. (n.d.). <https://www.bjp.org/bjp-manifesto-2024>

⁵⁷Victim-centric laws to ensure swift and timely justice: Shri Amit Shah. Bharatiya Janata Party. (n.d.-b). <https://www.bjp.org/interviews-and-articles/victim-centric-laws-ensure-swift-and-timely-justice-shri-amit-shah>

⁵⁸Nyay Patra: Manifesto: Lok Sabha elections 2024: Indian National Congress. Manifesto. (n.d.-b). <https://manifesto.inc.in/>

⁵⁹Sekhar, - Metla Sudha, Gupta, - CA Rahul, Vajariya, - Ritesh, Patel, - Neil, De, - Tanusree, Rai, - Sachenkumar, Mukeri, - Zafer, Moore, - Pam, Haque, - Ameen, & Elearnmarkets. (n.d.). Congress calls for wider consultations on 3 bills to replace India's criminal laws. The Economic Times. <https://economictimes.indiatimes.com/news/politics-and-nation/congress-calls-for-wider-consultations-on-3-bills-to-replace-indias-criminal-laws/articleshow/102696347.cms?from=mdr>

⁶⁰Pti. (2024, July 1). Criminal laws passed “forcibly”, India will not allow “Bulldozer” justice in Par System: Congress. The Hindu. <https://www.thehindu.com/news/national/criminal-laws-passed-forcibly-india-will-not-allow-bulldozer-justice-in-par-system-congress/article68354789.ece>

“Something as important and as far-reaching as this. Many of us had called for an overhaul of the IPC but we wanted a discussion and the discussion never took place and that is something very regrettable in a democracy like ours,” he told reporters outside Parliament.

Congress MP Manish Tewari stated that these three new criminal laws are pernicious in nature and draconian in their implementation.

“They will throw a spanner in the works of the Indian criminal justice system. From today, two parallel systems will be in play. All those cases registered before June 30, 2024, midnight will be prosecuted under the old system and those cases registered after June 30, 2024, midnight will be prosecuted under the new system,” he said.

“There are 3.4 crore pending cases and a bulk of them are criminal cases. So, there is going to be utter confusion,” he said.’